

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

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GEORGE HARLEY,

SUMMONS

Plaintiff,

Index No.:

-against-

The Basis of Venue is:
Location of Incident

THE CITY OF NEW YORK, NYPD POLICE OFFICER
DANNY LAO, Shield No. 360, NYPD POLICE
OFFICER SHAUN CHAN, Shield No. 15007, and
NYPD POLICE OFFICERS JOHN DOES NUMBERS
ONE THROUGH TEN,

Plaintiff designates Kings
County as the place of trial.

Defendants.

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To the above named Defendants:

You are hereby summoned to answer the Verified Complaint in this action, and to serve a copy of your Verified Answer to the Verified Complaint, or, if the Verified Complaint is not served with this Summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this Summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
May 10, 2022

Yours, etc.

David Kline, Esq.
Shulman-Hill, PLLC
Attorneys for Plaintiff
1 State Street Plaza
15th Floor
New York, New York 10004
(212) 203-1090

TO: THE CITY OF NEW YORK, Corporation Counsel, 100 Church Street, NY, NY 10007

NYPD POLICE OFFICER DANNY LAO, SHIELD NO. 360, 73rd Precinct; 1470 East New York Avenue, Brooklyn, NY 11212

NYPD POLICE OFFICER SHAUN CHAN, SHIELD NO. 15007, 68th Precinct; 333 East 65th Street, Brooklyn, NY 11220

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

----- X

GEORGE HARLEY,

INDEX NO.:

Plaintiff,

VERIFIED COMPLAINT

-against-

THE CITY OF NEW YORK, NYPD POLICE OFFICER
DANNY LAO, Shield No. 360, NYPD POLICE
OFFICER SHAUN CHAN, Shield No. 15007, and
NYPD POLICE OFFICERS JOHN DOES NUMBERS
ONE THROUGH TEN,

JURY TRIAL DEMANDED

Defendants.

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Plaintiff GEORGE HARLEY, by his attorneys, Shulman-Hill, PLLC, as and for his Verified Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of Plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Sections 1983 and 1988, and of rights secured by the Fourth, Fifth, and Fourteenth Amendments to the United States Constitution, and the common law and the laws of the State of New York. On December 27, 2020, at approximately 12:30 p.m., Plaintiff George Harley, while lawfully in his home at 1677 St. John's Place, County of Kings, New York, was subject to an unlawful arrest, detention, and excessive use of force by defendant Police Officers. In addition, Plaintiff was assaulted, battered, and subjected to delay of medical treatment for the injuries inflicted upon him by defendant officers, exacerbating his injuries and prolonging his pain and suffering. Plaintiff was deprived of his constitutional, common law, and statutory rights when the individual defendants unlawfully stopped, detained, subjected to excessive force, passed along false accusations to prosecuting attorneys, and engaged in the malicious prosecution of Plaintiff, in violation of the Fourth, Fifth, and Fourteenth Amendments to the United States Constitution, the common law and the laws of the State of New York.

PARTIES

2. Plaintiff George Harley is a resident of the state of New York.

3. New York City Police Officer Danny Lao, Shield No. 360, is and was at all times relevant herein an Officer with the New York City Police Department.

4. New York City Police Officer Danny Lao, Shield No. 360, is being sued in his individual and official capacity.

5. Currently and at all times relevant herein, New York City Police Officer Danny Lao, Shield No. 360, was assigned to the 73rd Precinct of the NYPD.

6. New York City Police Officer Shaun Chan, Shield No. 15007, is and was at all times relevant herein an Officer with the New York City Police Department.

7. New York City Police Officer Shaun Chan, Shield No. 15007, is being sued in his individual and official capacity.

8. Currently and at all times relevant herein, New York City Police Officer Shaun Chan, Shield No. 15007, was assigned to the 68th Precinct of the NYPD.

9. New York City Police Officers John Does #1-10 are and were at all times relevant herein officers, employees, and agents of the New York City Police Department.

10. New York City Police Officers John Does #1-10 are being sued in their individual and official capacities.

11. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.

12. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department, which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

13. Plaintiff in furtherance of his causes of action brought pursuant to New York State law filed a timely Notice of Claim against the City of New York in compliance with the Municipal Law Section 50 and in accordance with New York State law.

14. In accordance with New York State law and General Municipal Law Section 50, Plaintiff testified at a hearing held pursuant to General Municipal Law Section 50-H on February 14, 2022.

15. More than thirty (30) days have elapsed since service of said Notice of Claim was filed and the City of New York has failed to pay or adjust the claims.

16. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

17. Plaintiff has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

STATEMENT OF FACTS

18. On December 27, 2020, at approximately 12:30 p.m., Plaintiff was present in his home located at 1677 St. John's Place, County of Kings, New York, when the defendant Police Officers unlawfully arrested Plaintiff without probable cause or legal justification.

19. On the day of the relevant incident, Plaintiff was getting ready to leave for work when his ex-girlfriend and mother of his daughter came to his apartment and caused a domestic disturbance, assaulting the plaintiff and defacing his apartment door.

20. The Plaintiff managed to keep his ex-girlfriend in the hallway and shut the door between them, and called 911 to mitigate the situation; unbeknownst to him, his ex-girlfriend also called the police.

21. Upon arrival, defendant officers called the plaintiff down to the lobby of his building. On his way down, the plaintiff ran into the second set of defendant officers who were called to the scene.

22. Plaintiff showed the defendant officers his defaced door and explained what had happened with his ex-girlfriend.

23. Defendant officers tried to get the plaintiff to come down to the station to make a statement, but he explained that he didn't have time because he had to leave for work soon.

24. A defendant police captain then grabbed the plaintiff by his shirt and pulled him into the hallway as two other defendant officers grabbed his arms.

25. At this point defendant officers tackled the plaintiff's legs out from under him, causing him to fall and seriously injure his right wrist.

26. Defendant officers then arrested plaintiff and tightly restrained him with metal handcuffs, sitting on his legs and putting their knees into his back, despite his pleas that he had seriously injured his wrist.

27. At no time relevant herein did Plaintiff commit a crime or violate the law in any way, nor did the police officers have an objective reason to accuse Plaintiff of committing a crime or violating the law in any way.

28. At no point did Defendant Officers recover any drugs, weapons, graffiti instruments, or other illegal contraband from Plaintiff or from a location that was in Plaintiff's possession, custody, or control.

29. Plaintiff did not resist arrest.

30. Nevertheless, Plaintiff was unlawfully arrested and handcuffed by the defendant officers without legal justification or probable cause, and dragged down the stairs of his building, causing further pain and injury.

31. Plaintiff was then placed in the back of an NYPD vehicle and transported to the 73rd Precinct against his will.

32. The plaintiff made several requests for medical attention, but he was ignored.

33. Upon his arrival at the Precinct, the Plaintiff was subjected to pat-down search and placed in a holding cell.

34. After several hours at the Precinct and continued pleas from the plaintiff, an ambulance was finally called and the plaintiff was taken to Brookdale Hospital for medical treatment, where he was X-rayed and given a hard cast for his fractured and/or broken wrist.

35. After approximately 24 hours at the precinct, the Plaintiff was transported to Kings County Central Bookings where he was fingerprinted, searched, and placed in another holding cell.

36. While Plaintiff was in custody, the defendant police officers provided the Kings County District Attorney's Office with the false, misleading, and/or incomplete information that Plaintiff committed a crime.

37. Specifically, the defendant police officers falsely stated to the Kings County District Attorney's Office that Plaintiff was engaged in Assault and Harassment.

38. After approximately 36 hours in custody, the plaintiff appeared in criminal court, was charged with crimes he did not commit, and released on his own recognizance.

39. On or about November 29, 2021, all charges against the plaintiff were dismissed and sealed.

40. As a result of the excessive force and negligence inflicted upon him by defendant officers, the plaintiff suffered lasting injuries to his right wrist, necessitating surgery, physical therapy, and ongoing medical treatment.

41. Some of the police officer defendants observed the violation of Plaintiff's rights under the Constitution of the United States and New York State Law and did nothing to prevent their fellow officers from unjustifiably arresting, confining, and using excessive force against Plaintiff.

42. The unlawful arrest, confinement, and use of excessive force by the individually named defendants caused Plaintiff to sustain physical, psychological and emotional trauma.

FIRST CAUSE OF ACTION

Negligence

43. The Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the foregoing paragraphs with the same force and effect as if more fully set forth at length herein.

44. Defendants owed a duty of care to Plaintiff.

45. To the extent defendants claim that the injuries to Plaintiff by the defendant police officers were unintentionally caused and that the force used by the defendants against him was unintentional, then the defendants breached that duty of care by, among other things, sweeping his legs out from under him and causing him to fall and injure himself.

46. As a direct and proximate result of such acts, defendants deprived Plaintiff of his rights under the laws of the State of New York.

47. All of the foregoing occurred without any fault or provocation by Plaintiff.

48. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

49. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

50. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to physical, emotional, and psychological injuries.

SECOND CAUSE OF ACTION
Unlawful Stop, Question, and Search

51. The Plaintiff repeats, reiterates, and re-alleges the foregoing paragraphs as if the same were fully set forth at length herein.

52. The illegal approach, pursuit, stop and grab employed by defendants herein terminated Plaintiff's freedom of movement through means intentionally applied.

53. The conduct of defendants in approaching, stopping, and grabbing Plaintiff was performed under color of law and without any reasonable suspicion of criminality or other constitutionally required grounds.

54. As a direct and proximate result of such acts, defendants deprived Plaintiff of his rights under the laws of the State of New York.

55. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

56. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

THIRD CAUSE OF ACTION
Violation of Fourth and Fourteenth Amendment Rights:
Unlawful Seizure and Deprivation of Liberty

57. The Plaintiff repeats, reiterates, and re-alleges the foregoing paragraphs as if the same were fully set forth at length herein.

58. The individually named police officer defendants, while acting in concert and within the scope of their authority, caused Plaintiff to be seized, unlawfully searched, falsely arrested, falsely imprisoned, and maliciously prosecuted without reasonable suspicion and/or probable cause, in violation of Plaintiff's right to be free of an unreasonable seizure under the Fourth Amendment of the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

59. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to physical, emotional, and psychological injuries.

FOURTH CAUSE OF ACTION
False Imprisonment

60. The Plaintiff repeats, reiterates, and re-alleges the foregoing paragraphs as if the same were fully set forth at length herein.

61. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine Plaintiff and, in fact, confined Plaintiff, and Plaintiff was conscious of the confinement. In addition, Plaintiff did not consent to the confinement and the confinement was not otherwise privileged.

62. As a direct and proximate result of such acts, defendants deprived Plaintiff of his rights under the laws of the State of New York and the United States Constitution.

63. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

64. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

65. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to loss of liberty, emotional and psychological injuries.

FIFTH CAUSE OF ACTION

Violation of Plaintiff's Fourth And Fourteenth Amendment Rights: Excessive Force

66. The Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the foregoing paragraphs with the same force and effect as if more fully set forth at length herein.

67. The use of excessive force by defendants by, amongst other things, sweeping his legs and causing him to fall and injure himself, constituted objectively unreasonable physical seizures of Plaintiff in violation of his rights under the Fourth and Fourteenth Amendments to the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

68. Defendants were at all times agents, servants, and employees acting within the scope of his employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

SIXTH CAUSE OF ACTION

Negligent Infliction of Emotional Distress

69. The Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the foregoing paragraphs with the same force and effect as if more fully set forth at length herein.

70. By the actions described herein, defendants, each acting individually and in concert with each other, engaged in extreme and outrageous conduct, conduct utterly intolerable in a civilized community, which negligently caused severe emotional distress to Plaintiff.

71. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to Plaintiff and violated Plaintiff's statutory and common law rights as guaranteed Plaintiff by the laws and Constitution of the State of New York.

72. As a direct and proximate result of such acts, defendants deprived Plaintiff of his rights under the laws of the State of New York.

73. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

74. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

75. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

SEVENTH CAUSE OF ACTION **Negligent Hiring, Retention, Training and Supervision**

76. The Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the foregoing paragraphs with the same force and effect as if more fully set forth at length herein.

77. The City of New York and its employees, servants and/or agents acting within the scope of their employment did negligently hire, retain, train and supervise defendants, individuals who were unfit for the performance of police duties on the aforementioned dates at the aforementioned locations.

78. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to physical, emotional, and psychological injuries.

EIGHTH CAUSE OF ACTION **Failure to Intervene**

79. The Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the foregoing paragraphs with the same force and effect as if more fully set forth at length herein.

80. The defendants that did not physically touch Plaintiff, but were present when other officers violated Plaintiff's Constitutional Rights had an affirmative duty to intervene

on behalf of Plaintiff, whose constitutional rights were being violated in their presence by other officers.

81. Defendants failed to intervene to prevent the unlawful conduct described herein.

82. As a result of the foregoing, Plaintiff suffered serious injury, his liberty was restricted for an extended period of time, he was seriously injured, he was put in fear for his safety, and he was humiliated and subject to other physical constraints.

83. As a direct and proximate result of such acts, defendants deprived Plaintiff of his rights under the laws of the State of New York.

84. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

85. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

86. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to physical, emotional, and psychological injuries.

NINTH CAUSE OF ACTION

Violation of Fourth And Fourteenth Amendment Rights: Denial of Right to Fair Trial/Due Process

87. The Plaintiff repeats, reiterates, and re-alleges the foregoing paragraphs as if the same were fully set forth at length herein.

88. Defendants, individually and collectively, manufactured and/or withheld false evidence and forwarded this false evidence to prosecutors in the Kings County District Attorney's Office.

89. Defendants filled out false and misleading police reports and forwarded them to prosecutors in the Kings County District Attorney's Office.

90. Defendants signed false and misleading criminal court affidavits and forwarded them to prosecutors in the Kings County District Attorney's Office.

91. In withholding/creating false evidence against Plaintiff, and in providing/withholding information with respect thereto, Defendants violated Plaintiff's constitutional right to due process and fair trial under the New York State Constitution and under the Due Process Clause of the Fifth Amendment to the Constitution of the United States and to be free to deprivation of liberty under the Fourteenth Amendment to the United States Constitution.

92. As a result of the foregoing, Plaintiff sustained, inter alia, loss of the right to due process and a fair trial, loss of liberty, emotional distress, embarrassment and humiliation, and deprivation of his constitutional rights.

93. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

94. The City, as the employer of the officer Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

95. As a result of the aforementioned conduct of Defendants, Plaintiff sustained injuries including, but not limited to: economic, emotional, and psychological injuries.

TENTH CAUSE OF ACTION **Malicious Prosecution**

96. The Plaintiff repeats, reiterates, and re-alleges the foregoing paragraphs as if the same were fully set forth at length herein.

97. The acts and conduct of the Defendants constitute malicious prosecution under the United States Constitution.

98. Defendants commenced and continued a criminal proceeding against Plaintiff.

99. There was actual malice and an absence of probable cause for the criminal proceeding against Plaintiff and for each of the charges for which he was prosecuted.

100. The prosecution and criminal proceedings terminated in Plaintiff's favor on the aforementioned dates.

ELEVENTH CAUSE OF ACTION **Assault**

101. The Plaintiff repeats, reiterates and re-alleges each and every allegation contained in the foregoing paragraphs with the same force and effect as if more fully set forth at length herein.

102. Defendants, their agents, servants and employees, acting within the scope of their employment, intentionally, willfully, and maliciously assaulted Plaintiff in that they had the real or apparent ability to cause imminent harmful and/or offensive bodily contact and intentionally did a violent and/or menacing act which threatened such contact to the Plaintiff, that such acts caused apprehension of such contact in the Plaintiff.

103. As a direct and proximate result of such acts, defendants deprived Plaintiff of his rights under the laws of the State of New York.

104. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

105. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

106. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

TWELFTH CAUSE OF ACTION

Battery

107. The Plaintiff repeats, reiterates and re-alleges each and every allegation contained in the foregoing paragraphs with the same force and effect as if more fully set forth at length herein.

108. Defendants, their agents, servants and employees, acting within the scope of their employment, intentionally, willfully and maliciously battered Plaintiff, when they, in a hostile and/or offensive manner, roughly grabbed the plaintiff and tackled his legs, brutally effecting an arrest of Plaintiff without his consent and with the intention of causing harmful and/or offensive bodily contact to the Plaintiff and caused such battery.

109. As a direct and proximate result of such acts, defendants deprived Plaintiff of his rights under the laws of the State of New York.

110. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

111. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

112. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to physical, emotional, and psychological injuries.

THIRTEENTH CAUSE OF ACTION

Deliberate Indifference to Medical Needs

113. The Plaintiff repeats, reiterates, and re-alleges the foregoing paragraphs as if the same were fully set forth at length herein.

114. Defendants, despite being aware that Plaintiff was suffering from an injured wrist and required medication and additional treatment from medical professionals, delayed Plaintiff's medical treatment and refused to administer and properly procure immediate and adequate medical attention.

115. The delay in medical treatment to Plaintiff's injuries resulted in extreme and excruciating pain, suffering, and exacerbation to injuries that were suffered by Plaintiff that would have been prevented if Plaintiff received treatment in a timely manner.

116. As a direct and proximate result of such acts, defendants deprived Plaintiff of his rights under the laws of the State of New York.

117. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

118. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

119. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

JURY DEMAND

120. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

PRAYER FOR RELIEF

WHEREFORE, Plaintiff GEORGE HARLEY demands judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorneys' fees inclusive of costs and disbursements of this action, interest and such other relief as is appropriate under the law, and that the Plaintiff recover the cost of the suit herein, including reasonable attorney's fees pursuant to 42 U.S.C. § 1988.

Dated: New York, New York
May 10, 2022

By: David Kline
David Kline, Esq.
Shulman-Hill, PLLC
Attorneys for Plaintiff
1 State Street Plaza

15th Floor
New York, New York 10004
(212) 203-1090

TO: THE CITY OF NEW YORK, Corporation Counsel, 100 Church Street, NY, NY 10007

NYPD POLICE OFFICER DANNY LAO, SHIELD NO. 360, 73rd Precinct; 1470 East
New York Avenue, Brooklyn, NY 11212

NYPD POLICE OFFICER SHAUN CHAN, SHIELD NO. 15007, 68th Precinct; 333
65th Street, Brooklyn, NY 11220

ATTORNEY'S VERIFICATION

DAVID KLINE, an attorney duly admitted to practice before the Courts of the

State of New York, affirms the following to be true under the penalties of perjury:

I am a partner of the law firm of **SHULMAN-HILL PLLC**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiff is because Plaintiff does not reside in the county wherein I maintain my office.

DATED: New York, New York
May 10, 2022

David Kline

DAVID KLINE, ESQ.